MEMORANDUM OF AGREEMENT

KNOW ALL MEN BY THESE PRESENTS:

This Memorandum of Agreement made and entered into by:

The **DEPARTMENT OF AGRICULTURE REGIONAL OFFICE 5**, a government instrumentality with office address at San Agustin, Pili, Camarines Sur represented herein by its Regional Executive Director, **ELENA B. DE LOS SANTOS**, herein referred to as **"DA RFO 5"**; and

The **PARTIDO STATE UNIVERSITY,** an institution of higher learning established under R.A. No. 9029, with principal office at San Juan Bautista St., Goa, Camarines Sur duly represented by the University President, **DR. RAUL G. BRADECINA**, hereinafter referred to as the implementing agency, **"ParSU"**,

WITNESSETH

WHEREAS, the Philippines is now facing the very real impacts of climate change, which threaten to undermine development prospects and exacerbate the vulnerability of poor **communities especially the country's agri-fisheries sector;**

WHEREAS, the Bicol Region is strategically-located and exposed to climate-risks thereby directly affecting the region's agri-fishery communities;

WHEREAS, the DA RFO 5, being the regional office of DA is directed to promote the adoption and utilization of recommended agricultural technologies and practices to develop a climate-resilient agriculture and fisheries sector in the region;

WHEREAS, the ParSU having resources for agriculture research and development, was selected as institutional partner of DA RFO 5 to implement Development of Comprehensive Early Warning System for Agri- Fishery Communities in the Bicol River Basin Project.

NOW THEREFORE, in view of the foregoing premises, the parties hereby agree on the following:

Article I

GENERAL PROVISIONS

1. This Memorandum of Agreement shall cover the implementation of Development of Comprehensive Early Warning System for Agri- Fishery Communities in the Bicol River Basin Project in the Municipalities of Baao, Canaman and Minalabac in the Province of Camarines Sur with a total project cost of Four Million Four Hundred Sixty Nine Thousand Five Hundred Pesos only (Php 4,469,500.00) from the DA RFO 5 funds.

Capital outlay is allowed as long as the CO conforms to the real need/objective of the project and included in the WFP.

2. Implementation of the projects shall be based on the approved project proposal and Work and Financial Plan (WFP) that forms part of this Agreement, herein referred to as Annexes A and B.

Article II

RESPONSIBILITIES AND DUTIES

DA RFO 5

1. Provide project policy guidelines and directions, and perform oversight functions;
2. Obligate the allotment for the project to be implemented based on the advice of allotment and/or memorandum of agreement or similar document;
3. Download funds/issue a check directly to ParSU for the implementation of Development of Comprehensive Early Warning System for Agri- Fishery Communities in the Bicol River Basin Project;
4. Conduct monitoring and evaluation on the progress of the project implementation with designated DA RFO 5 staff;
5. Maintain a subsidiary ledger of the cash transferred pertaining to the project;
6. Require ParSU to submit quarterly accomplishment and accountant certified financial reports and furnish DA RFO 5 with a copy of the journal voucher (JV) taking up the expenditures. Upon receipt of the copy of the Certificate of Settlement and Balances (CSB) and the Credit Notice (CN) issued by ParSU Auditor, the Accountant shall draw a journal voucher restoring back the amount previously credited for any disallowance. He shall furnish the implementing agency with a copy of the journal voucher;
7. Issue the official receipt for the unexpected balance and the refunded disallowance remitted by ParSU;
8. Assist ParSU in the conduct of Development of Comprehensive Early Warning System for Agri- Fishery Communities in the Bicol River Basin, and;
9. Engage DA programs, as well as the Provincial and Municipal Local Government Unit, through the Agriculture and Veterinary offices, to provide technical assistance whenever needed.

ParSU

1. Receive fund from DA RFO 5, issue official receipt, and maintain a separate account for the project in any government servicing bank;
2. Deposit the amount with its authorized depository bank;
3. Disburse funds solely in accordance with the approved project proposal and WFP (Annexes A and B), consistent with existing accounting and auditing rules and regulations and Republic Act 9184, otherwise known as the Government Procurement Reform Act.

4. Keep separate subsidiary records for the trust liability whether or not a separate bank account is maintained;
5. The Accountable Officer (AO) shall prepare and submit quarterly RCI and RD with all supporting vouchers/payrolls and documents to the Accountant. These reports shall be approved by the Head of the Agency;
6. Designate a Project Team to coordinate the implementation of Development of Comprehensive Early Warning System for Agri- Fishery Communities in the Bicol River Basin Project in accordance to the approved WFP (Annex A);
7. Submit to DA RFO 5, quarterly project report on the various activities undertaken, issues encountered, and recommendations to ensure coordinated project implementation.
8. Provide counterpart as required and as maybe needed by the project either in cash or in kind, such as but not limited to labor and other materials for project implementation;
9. Maintain a record of the project's operations, and whenever requested, allow RFO 5 to access the same;
10. Submit request for approval on any deviations in the implementation of the approved WFP. Such request is subject for approval by DA RFO 5 upon assessing the merits of request; and,
11. Return/refund to DA RFO 5, excess or unutilized funds after project completion.
12. Within ten (10) days after receipt from the Accountable Officer, the Accountant shall verify the reports, provide accounting entries, record and submit the duplicate copies of the Reports with all the originals of vouchers/payroll and all supporting documents to the Implementing Agency Auditor. The Accountant shall ensure that only expenses for the project are included in the Reports. He shall submit the original copy of the Reports to the SA;
13. Record the disallowance in audit after receipt of the Certificate of Settlements and Balances and the Credit Notice issued by the Implementing Agency Auditor and require the settlement of any suspension and disallowance;

Article III

INTELLECTUAL PROPERTY RIGHTS

1. *Intellectual property rights.* – All data gathered in the course of and as a result of the implementation of the project such as, but not limited to reports, articles, research papers, data banks, tri-media presentations including project outputs, discoveries, inventions as well as the income derived there from, shall be owned by **DA RFO 5** and such other government policies relating to government-funded research projects such as but not limited to RA 10055, all of which are deemed incorporated into this Agreement. Government personnel involved in the project shall further be subject to such policies, rules and regulations governing copyrightable and patentable works produced by government personnel.

2. *Recognition of principal author/institutions.* – All major reports or articles including tri media presentations using project data and output shall recognize the principal researchers and authors involved in the project as well as acknowledge **DA RFO 5** as the source of funding support.

Article IV

EFFECTIVITY, TERMINATION AND PENALTY

Any violation of the terms and conditions set forth herein or misappropriation of funds of the involved parties shall subject the same to administrative/penal sanction under the Laws of the Philippines.

The project shall be completed within two (2) year period after fund receipt. This contract may be terminated by any of the contracting parties, upon justifiable causes to be determined by proper authorities, and provided that a written Notice of Termination is issued at least thirty (30) days prior to termination date. Request for extension of the project is subject for approval by DA RFO 5 upon assessing the merits of request.

Article V

AMENDMENTS AND EFFECTIVITY

The parties may, upon mutual agreement, amend or modify this Memorandum of Agreement anytime through an addendum signed by all parties.

This Agreement shall take effect on the date of signing hereof by all parties and will continue to be in force until full completion of approved project/s.

IN WITNESS WHEREOF, the parties, through their authorized representatives, have hereunto affixed their signatures this __day of _____2018, at _____.

DEPARTMENT OF AGRICULTURE
REGIONAL FIELD OFFICE 5

ELENA B. DE LOS SANTOS
Regional Executive Director

PARTIDO STATE UNIVERSITY

RAUL G. BRADECINA
SUC President III

SIGNED IN THE PRESENCE OF

RODEL P. TORNILLA
OIC RTD for Operations and Extension

RICKY P. LAURETA
Dean, ParSU Caramoan Campus

ACKNOWLEDGEMENT

Republic of the Philippines)
Quezon City) :SS

BEFORE ME, a Notary Public, personally appeared the following

NAME	ID NO.	ISSUED ON	ISSUED AT
ELENA B. DE LOS SANTOS	Employee ID 05-3039		
RAUL G. BRADECINA	PP#EC6518477	Jan. 19. 2016	DFA Legaspi City

Known to me to be the same persons who executed the foregoing instrument consisting of six (6) pages including the page wherein the acknowledgement is written and they acknowledge to me that the same is their own and free voluntary act and deed of the government agencies/entities they respectively represent. 27 JUN 2018

IN WITNESS WHEREOF, I hereunto set my hand and seal, this ____ day of _____2018 at PILI. CAM. SUR, Philippines.

NOTARY PUBLIC

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RONALDO F. IMPERIAL
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MCLE (ADMITTED TO THE BAR, 05-30-17)
HERRERA LAW OFFICE
SAN VICENTE, PILI, CAM. SUR